

ASCII MASTER FLOW – PANEL 1/9: Articles 168-212 and the choice between one House and two

ARTICLE 168

Governor + Legislative Assembly in every State

+-- Legislative Council only in a bicameral State.

ARTICLE 169 CREATION / ABOLITION

Assembly special resolution -> Parliament ordinary law -> no Article 368 amendment procedure.

Parliament is enabled, not legally compelled, by the State resolution.

CURRENT MAP

six Council States: Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra, Karnataka.

DESIGN VERDICT

Assembly carries direct democratic confidence; Council supplies revision and continuity, but cannot become a co-equal veto chamber.

ASCII MASTER FLOW – PANEL 2/9: Composition, election, duration and membership controls

ASSEMBLY

direct election | normal five-year term | minimum age 25 | dissolution possible.

COUNCIL

indirect mixed composition under Article 171 | permanent House | one-third retire every two years
| minimum age 30 | total strength normally not more than one-third of Assembly, minimum 40.

COUNCIL ELECTORAL STREAMS

local authorities 1/3 | graduates 1/12 | teachers 1/12 | Assembly members 1/3
| Governor nominates remainder for specified knowledge/experience.

MEMBERSHIP

Article 191 disqualification -> Article 192 Governor decision after ECI opinion;
Tenth Schedule questions follow the presiding-officer route.

ASCII MASTER FLOW – PANEL 3/9: Presiding officers, sessions, quorum and voting

OFFICERS

Assembly Speaker/Deputy Speaker | Council Chairman/Deputy Chairman.
removal requires notice and the constitutional majority stated for the House.

SESSION CHAIN

Governor summons -> sitting -> adjournment / adjournment sine die -> prorogation
-> Assembly alone may be dissolved.
No more than six months may intervene between sessions.

QUORUM

ten members or one-tenth of total membership, whichever is greater.

VOTING

members present and voting -> presiding officer ordinarily no first vote
-> casting vote on equality; vacancies do not invalidate otherwise lawful proceedings.

ASCII MASTER FLOW – PANEL 4/9: Privileges, questions, motions and procedural accountability

ARTICLE 194 PRIVILEGE

functional protection for speech, vote and legislative work; not a personal criminal licence.
Sita Soren (2024) -> bribery is not protected merely because it relates to a vote or speech.

JUDICIAL CONTROL

Raja Ram Pal (2007) -> privilege and expulsion powers remain reviewable for illegality, unconstitutionality, mala fides or substantive procedural violation.

ACCOUNTABILITY DEVICES

questions | short-duration discussion | calling attention | adjournment motion
| no-confidence/censure | privilege motion | cut motions.

CORE DISTINCTION

no-confidence tests ministry survival in the Assembly; Council cannot make or unmake the ministry.

ASCII MASTER FLOW – PANEL 5/9: Ordinary, Money and financial Bills across unequal Houses

ORDINARY BILL IN BICAMERAL STATE

either House may originate -> Council may delay first passage up to three months
-> Assembly repasses -> Council may delay up to one month
-> Assembly ultimately prevails; no State joint sitting.

MONEY BILL

Assembly only + Governor's recommendation -> Speaker certificate
-> Council has 14 days and recommendations only -> Assembly may accept or reject.

FINANCIAL BILLS

identify the constitutional category; not every Bill involving money is a Money Bill.

ASSENT GATE

Article 200 assent/withhold/return non-Money Bill/reserve
-> Article 201 presidential route for reserved Bills.

ASCII MASTER FLOW – PANEL 6/9: Budget, funds, committees and executive scrutiny

ANNUAL FINANCIAL STATEMENT

charged expenditure discussed but not voted

-> demands for grants voted only by Assembly

-> appropriation authorises withdrawal from Consolidated Fund

-> Finance Bill completes taxation changes.

FUNDS

Consolidated Fund | Contingency Fund | Public Account: distinct custody and vote rules.

COMMITTEE CHAIN

Public Accounts Committee -> appropriation and audit

Estimates Committee -> economy and policy efficiency

Public Undertakings Committee -> State enterprise scrutiny

Departmental/subject committees -> detailed examination.

CONTROL TEST

budget power matters only when members receive time, data, research and follow-up compliance.

ASCII MASTER FLOW – PANEL 7/9: Anti-defection and the ordinance-legislature interface

TENTH SCHEDULE

voluntary giving up | whip breach without permission/condonation | independent joins party
| nominated member joins after six months -> disqualification routes.

ADJUDICATION

Speaker/Chairman decides, subject to judicial review.

Kihoto Hollohan (1992) -> review survives after the decision on recognised grounds.

Nabam Rebia (2016) decided several Governor/Speaker questions;

its Speaker-removal issue was referred in Subhash Desai (2023) and remains unresolved.

ARTICLE 213 INTERFACE

ordinance is a temporary necessity bridge when the session condition is met;

it must return to legislative scrutiny and cannot become a parallel ordinary lawmaking cycle.

ASCII MASTER FLOW – PANEL 8/9: Legislative competence and Article 212's limited shield

COMPETENCE FIRST

Article 246 + Seventh Schedule + special fields -> pith and substance
-> incidental encroachment -> repugnancy where the Concurrent field applies.

ARTICLE 212

court does not invalidate proceedings merely for procedural irregularity
BUT substantive illegality, constitutional violation and jurisdictional error remain reviewable.

ASSENT CURRENT CONTROL

State of Tamil Nadu v. Governor of Tamil Nadu (2025) used timelines/deemed assent on its facts.
In re Assent, Withholding or Reservation of Bills (2025) is advisory and non-binding:
no rigid timelines or automatic deemed assent; prolonged unexplained inaction may be reviewed.

PRIVILEGE, SPEAKER CERTIFICATION AND DEFECTION ARE NOT REVIEW-FREE ZONES.

ASCII MASTER FLOW – PANEL 9/9: Assembly-Council comparison, current reforms and answer synthesis

ASSEMBLY

direct mandate
confidence and grants
may be dissolved
final ordinary-Bill control
Money Bill dominance

COUNCIL

indirect mixed representation
revision and continuity
permanent
maximum delaying power
recommendations within 14 days

CURRENT CONTROLS

106th Amendment commenced but awaits census-linked delimitation for operation.

The failed/withdrawn 2026 Bills are proposals, not law; Census 2027 dates do not fix delimitation.

MAINS SPINE

define chamber design -> cite Article -> compare power -> evidence/problem

-> representation/productivity reform -> stronger committees and sitting calendars

-> effective State legislatures as institutions of representative federalism.